

Court No. - 32

Case :- WRIT - C No. - 41776 of 2019

Petitioner :- Sadhna Singh And Another

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Santosh Kumar
Singh, Krishna Mohan Ojha

Counsel for Respondent :- C.S.C., Narendra
Kumar Tiwari

Hon'ble Shashi Kant Gupta, J.

Hon'ble Shamim Ahmed, J.

This writ petition has been filed, *inter alia*, for the following reliefs:

"(A) I) issue a writ, order or direction in the nature of certiorari calling for the records of the case and quashing the impugned final assessment order dated 30.08.2019 (Annexure No.1 to this writ petition) passed by the respondent No.3."

Learned counsel for the petitioner has submitted that the final assessment order has been passed without giving any opportunity of hearing and following the provisions contained under the U.P. Electricity Supply Code 2005 and the respondents are taking coercive action against the petitioner.

Learned counsel for the electricity department has submitted that the petitioner has an alternative and efficacious statutory remedy by way of an appeal under Section 127 of the Act for redressal of his grievance before the appellate authority but instead of availing the said alternative remedy, the petitioner has chosen to file the present writ petition, which is not maintainable before this court. Learned counsel for the petitioner has not been able to rebut the contention so made by the learned counsel for the electricity department.

Heard the learned counsel for the petitioner and Mr. Narendra Kumar Tiwari, learned counsel for the electricity department and perused the record.

Admittedly, for redressal of his grievance, the petitioner has an alternative statutory remedy of appeal under Section 127 of the Act before the appellate authority.

The petitioner may, if so advised, file an appeal against the final order under section 127 of the U P Electricity Act before the appropriate authority within two weeks from today along with a certified copy of this order and if any such appeal is filed by the petitioner, the concerned appellate authority shall decide the same on merits preferably within four weeks from the date of filing of the said appeal in accordance with law without reference to the period of limitation, if the appeal is filed within the time as indicated herein above.

For a period of six weeks, no coercive measures shall be taken against the petitioner with respect to amount sought to be recovered under the impugned recovery certificate.

It is made clear that this Court has not expressed any opinion on the merits of the case. The petitioner, if prefers an appeal under Section 127 of the Act before the appellate authority, the appellate authority shall consider the matter on its own merits.

With the above observations, the present writ petition stands finally disposed of.

Order Date :- 17.12.2019

MLK